

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 05/18/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-03102
CASE NAME: ALBERTO MALDONADO VS. RICARDO SALAS
*HEARING ON MOTION IN RE: GOOD FAITH SETTLEMENT BETWEEN SALAS AND MALDANADO
FILED BY: SALAS, RICARDO
TENTATIVE RULING:

Before the Court is Defendant Richard Salas' Motion for Determination of Good Faith Settlement ("Motion").

Defendant Salas' unopposed Motion is **GRANTED**.

Factual and Procedural Background

This matter pertains to a multiple motor vehicle accident that occurred on April 1, 2022, at

approximately 4:25 a.m. According to the police report, the accident occurred on the westbound portion of I-80 in Pinole. Due to slowing traffic, Plaintiff Maldonado came to a complete stop in the #2 lane. Non-parties Williams and Rodriguez also came to a complete stop in the #1 and #3 lanes, respectively.

Defendant Salas was driving his Tesla at approximately 70- miles per hour. He asserts that he had the Tesla in 'self-driving mode' at the time. The traffic report indicates that he noticed traffic was slowing down and he assumed that the Tesla would slow down on its own. When it did not, he stepped on the brakes and veered to avoid hitting Maldonado. His actions were too late, and Mr. Salas collided with Mr. Maldonado as well as Williams – who was pushed into Rodriguez. The police report notes that the cause of the accident was Salas' driving at an unsafe speed. No citation was issued.

Plaintiff Maldonado filed his complaint in this matter on December 7, 2023. It alleges four causes of action: (1) strict products liability; (2) negligent produces liability; (3) motor vehicle negligence; and (4) general negligence. All causes of action are alleged against Tesla, while only causes of action 3 and 4 are alleged against Defendant Salas.

On September 5, 2025, Defendant Salas filed a motion for determination of good faith settlement. Tesla opposed the motion, essentially arguing the Salas failed to provide sufficient evidence to support his motion. On December 22, 2025, the Court denied Mr. Salas' motion without prejudice due to the lack of sufficient evidence for the Court to be able to properly determine if the settlement was made in good faith. The Court noted that Mr. Salas could "file a new motion with additional evidence in support...."

Mr. Salas filed this second Motion for Determination of Good Faith Settlement on January 13, 2026. It includes new and additional evidence. The motion is unopposed.

Standard

Code of Civil Procedure section 877.6 (a)(1) provides, in relevant part, "Any party to an action in which it is alleged that two or more parties are joint tortfeasors [...] shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors [...]." The issue of good faith must be determined on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response. (Code Civ. Proc. § 877.6 (b).)

A determination by a court that a settlement was made in good faith bars any other joint tortfeasor or co-obligor from asserting further claims against the settling party for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc. § 877.6(c).)

The criteria for the determination of a good faith settlement were originally set out by the California Supreme Court in *Tech-Bilt*. That case identified six nonexclusive factors for determining if a settlement was made in good faith:

- (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability;
- (2) the amount paid in settlement;
- (3) the allocation of settlement proceeds among plaintiffs;

- (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial;
- (5) the financial conditions and insurance limits of settling defendants; and,
- (6) the existence of fraud, collusion, or tortious conduct aimed to injure the interests of nonsettling defendants.

(*Tech-Bilt*, supra, 38 Cal.3d at 499.)

A settlor's percentage of liability is the touchstone question to be considered in a contested good faith settlement proceeding. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1262-1264) The settling party must present sufficient admissible evidence that will allow the Court to evaluate the settlement in terms of the factors contemplated by *Tech-Bilt*. (*Id.* at 1263.)

The party asserting the lack of good faith has the burden of proving "that the settlement is so far 'out of the ballpark' in relation to the factors [noted above] as to be inconsistent with the equitable objectives of the statute." (*Tech-Bilt*, supra, 38 Cal.3d at 499-500.)

Analysis

Defendant Salas has agreed to pay Plaintiff the amount of \$2,325,000.00, which is the balance of his insurance policy limits applicable to this incident. In exchange, Plaintiff will dismiss the current action against Defendant Salas and fully release of all claims related to the accident.

Defendant presents evidence that on September 25, 2025, Plaintiff served non-settling defendant Tesla with a Code of Civil Procedure section 998 offer of settlement in the amount of \$1,250,000.00. (Streza Decl. Ex. E.) Thus, even if Plaintiff were to obtain the full amount it is seeking from Tesla, the total amount Plaintiff is seeking would total \$3,575,000. Accordingly, Defendant Salas' settlement payment represents over 65% of the settlement value of Plaintiff's claims. The Motion and Declaration in Support also outline the particulars of the case and explain the parties' various positions and potential for liability.

If a motion for good faith determination is unopposed, a "barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient." (*City of Grand Terrace*, supra, 192 Cal.App.3d at 1261.) The Court finds there is sufficient information to determine that the settlement has been made in good faith.

Conclusion

Defendant Salas' Motion for Determination of Good Faith Settlement is **GRANTED**.

2. 9:00 AM CASE NUMBER: C24-00851
CASE NAME: DANIEL COSTA VS. FADIA SAADEH
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY:
TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings ("Motion") filed by defendants Fadia Saadeh, Patrick Ward, Country Equestrians LLC, and Dig This, Inc., ("Defendants"). The Motion argues

that the alter ego allegations are insufficient, and that the first cause of action (promissory fraud), third cause of action (breach of contract), sixth cause of action (Bus. & Prof. Code § 17200), eighth cause of action [disgorgement, Bus. & Prof. Code § 7031, subd. (b)], and tenth cause of action (claim against contractor and other bonds), fail to state facts sufficient to constitute causes of action.

For the reasons discussed below, the Court's ruling is to GRANT Defendants' motion for judgment on the pleadings as to the first cause of action for promissory fraud, as to Dig This, Inc. only, with leave to amend, and as to the eighth cause of action for Business and Professions Code section 7031(b) recovery, as to Country Equestrian LLC only, with leave to amend. The Court DENIES Defendants' motion for judgment on the pleadings as to the remaining causes of action.

Plaintiffs may file and serve an amended complaint within 30 days of notice of entry of this order. (Code Civ. Proc. § 438(h)(2).)

Meet and Confer

The meet and confer requirement has been satisfied. (Dylan Yale Fukai Decl., ¶¶ 3-5, Exhs. A-B; Code Civ. Proc. § 439(a)(3)(A).)

Legal Standard for Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc. § 438(b)(1), (c)(1)(B)(ii), and (c)(2)(A); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]".]) (See also *Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 ["A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in." [Citation omitted.]".]) A motion for judgment on the pleading may also be made to the complaint in its entirety. (Code Civ. Proc. § 438(c)(2)(A).)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438, subd. (d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) Further, "If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment." (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.)

Request for Judicial Notice

Defendants request the Court to take judicial notice of 7 documents pursuant to Evidence Code section 452, subdivision (h), which provides that “Judicial notice may be taken of . . . Facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.”

Defendant specifically asks the Court to take judicial notice of the following:

1. The CSLB’s License Detail for License # 742485 (Dig This Inc),
<https://www.cslb.ca.gov/OnlineServices/CheckLicenseII/LicenseDetail.aspx?LicNum=742485>;
2. The Grant Deed for 1330 Castle Rock Road, Walnut Creek, California 94598, dated December 15, 2020;
3. The Quitclaim Deed for 1330 Castle Rock Road, Walnut Creek, California 94598, dated December 18, 2020.;
4. The Grant Deed for 1330 Castle Rock Road, Walnut Creek, California 94598, dated December 8, 2022;
5. The Articles of Organization for Country Equestrian LLC filed with the California Secretary of State;
6. Statements of Information for Country Equestrian LLC filed with the California Secretary of State;
7. The History of Dig This, Inc. with the California Secretary of State,
<https://bizfileonline.sos.ca.gov/search/business>.

“Subdivision (h) provides for judicial notice of indisputable facts immediately ascertainable by reference to sources of reasonably indisputable accuracy. In other words, the facts need not be actually known if they are readily ascertainable and indisputable. Sources of ‘reasonably indisputable accuracy’ include not only treatises, encyclopedias, almanacs, and the like, but also persons learned in the subject matter.” (Evid. Code § 452, Law Revision Commission Comments.)

The Court cannot take judicial notice of requests 1 through 7 under Evidence Code section 452, subdivision (h), because none of those documents are “capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” Defendants do not explain how the requests qualify as being judicially noticeable under Evidence Code section 452, subdivision (h), however, the Court presumes that this is because the documents may be accessible via the internet.

Being available on the internet is insufficient to allow for judicial notice to be taken of something under subdivision (h). “Simply because information is on the Internet does not mean that it is not reasonably subject to dispute.” (*Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn. 10.) “[A]lthough it might be appropriate to take judicial notice of *the existence* of the Web sites, the same is not true of their factual content.” (*Searles Valley Minerals Operations, Inc. v. State Bd. of Equalization* (2008) 160 Cal.App.4th 514, 519 [“although public documents may be proper subjects for judicial notice, the truth of the matters stated in such documents is not.”]; *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 889 [“we know of no ‘official Web site’ provision for judicial notice in California”], questioned on other grounds.)

Despite being unable to take judicial notice pursuant to Evidence Code section 452, subdivision (h), the Court may take judicial notice of the request nos. 2 through 4, via subdivision (c), as *Ragland v U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, provides that “[a] recorded deed is an official act of the executive branch, of which this court may take judicial notice,” under Evidence Code section 452(c). (*Id.*, at p. 194.) For request nos. 1, 5, 6, and 7, judicial notice may also be taken pursuant to Evidence Code section 452, subdivision (c). (*Belen v. Ryan Seacrest Productions, LLC* (2021) 65 Cal.App.5th 1145, 1160, fn. 2 [“a statement filed with the Secretary of State becomes a document of which a court can properly take judicial notice” under section 452, subdivision (c)]; but see *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 607-608 [“Papers filed with state and federal agencies, including the Department of Insurance, do not fall within the ambit of subdivision (c) of section 452 of the Evidence Code.”].)

The Court grants Defendants’ requests for judicial notice nos. 1-7. However, as the truth of the contents of the judicially noticed documents is subject to dispute, the Court limits the judicial notice to the existence of the documents and not the truth of all the matters stated therein.

“Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning. [Citation.] On a demurrer a court’s function is limited to testing the legal sufficiency of the complaint. [Citation.] ‘A demurrer is simply not the appropriate procedure for determining the truth of disputed facts.’ [Citation.] The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114.)

Defendants’ requests for judicial notice are granted, subject to the limitations described above.

Background: Facts Alleged in Complaint

Plaintiffs allege that in early July 2021, they orally contracted with defendants Saadeh, Ward, and Country Equestrians for them to provide Plaintiffs horse boarding, maintenance and care services for Plaintiffs’ horses. (Complaint, ¶ 17.) Plaintiffs paid approximately \$6,000 per month for the horse boarding, maintenance, and care services. (*Id.*, at ¶ 19.) Plaintiffs subsequently were solicited and induced and thereafter entered into another oral agreement with Saadeh, Ward, and Country Equestrians, in which Plaintiffs would pay contractors and advance the costs of construction for a delapidated barn, to reconstruct it into a new 5-stall horse care facility, which would be used exclusively for Plaintiffs’ horses. Plaintiffs would continue to be charged for boarding their horses, but they were to get a \$5,000 per month credit against such boarding, maintenance, and care services, until Plaintiffs were reimbursed in full.

Plaintiffs allege that on October 27, 2021, during a meeting between Plaintiffs and defendants Saadeh, Ward, and Country Equestrians, that this promise was repeated, reiterated, and ratified, although Plaintiffs allege that defendants Saadeh, Ward, and Country Equestrians had no intention of fully and honestly performing. (Complaint, ¶ 21.) Between November 27, 2021, and May 2022, Plaintiffs ended up spending in excess of \$265,632 “to reconstruct the old dilapidated barn into the new 5-stall facility (with associated new tack, wash and storage space), including at least \$12,980.00 Plaintiffs paid directly to Defendants Saadeh, Ward and Dig This, Inc and including at least \$252,652.00 Plaintiffs paid to contractors previously engaged by Defendants Saadeh, Ward, and Country Equestrians to renovate and improve the Country Equestrians Client Lounge and office adjacent to the old dilapidated barn.” (*Id.*, at ¶ 25.)

On March 29, 2022, at a meeting, Defendants were to provide the long promised written contract for the barn construction and renovation, but instead they repudiated and refused to provide a written contract and further stated that would not provide the monthly credit of \$5,000, and also that Plaintiffs would need to pay \$12,000 per month to rent the new 5-stall facility. (Complaint, ¶129.)

Plaintiffs filed the instant Complaint on March 28, 2024.

Discussion

The Individuality of the Defendants

Defendants argue that the Complaint ignores the individuality of each of the Defendants and makes improper joint liability and alter ego allegations, which Defendants refer to as boiler-plate. (MPA ISO MJOP, pp. 8-10.) Part of this relies on the requests for judicial notice and taking the information from them as true. However, judicial notice has been granted as to the existence of the documents, but not to the truth of the matter asserted in them, so the Defendants' reliance on the truth of the contents of those documents does not help in this situation.

Further, the Court finds that the alter-ego allegations found in paragraphs 10 to 16 (especially paragraph 14) are sufficiently alleged.

Insofar as this argument seeks to remove Ward from the fourth cause of action for good faith improver under CCP § 871.1, and remove Saadeh, Ward, and Country Equestrian from the sixth cause of action violation of Business and Professions Code section 17200 *et seq.*, and remove Saadeh, Ward, and Country Equestrian from the eighth cause of action for violation of Bus. & Prof. Code § 7031, subd. (b), the court DENIES Defendants' motion for judgment on the pleadings as to these arguments.

First Cause of Action for Promissory Fraud

Defendants argue that the promissory fraud claim against Dig This Inc. is not pled with the proper heightened specificity for a fraud claim. (MPA ISO MJOP, pp. 10-11.) Plaintiffs argue that they have pled all the requisite elements for promissory fraud. (Amended MPA ISO Opposition, pp 11-12.) Defendants point out that Plaintiffs did not properly support the fraud claim as to Dig This Inc., and the allegations relating to fraud as to Dig This Inc. are not specific enough. (Amended Reply, p. 7.)

When pleading a fraud cause of action, the pleading must contain "facts which show how, when, where, to whom, and by what means the representations were tendered." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) If pled against a corporate defendant, like Dig This, Inc., a plaintiff must allege "the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.)

The Court finds the allegations relating to fraud as to Dig This, Inc. and its contractors license are insufficiently pled as to the requisite details as laid out in *Lazar* and *Tarmann*.

The Court GRANTS Defendants' motion for judgment on the pleadings as to Plaintiffs' first cause of action for promissory fraud, as to Dig This, Inc. only, with leave to amend.

Third Cause of Action for Breach of Contract

Defendants argue that Plaintiffs' breach of contract cause of action fails because (1) the Complaint does not allege the project was completed; and (2) the oral contract is invalid because of the statute of frauds requirement that contracts unable to be performed in one year must be in writing. (MPA ISO MJOP, pp. 12-13.) Plaintiff's amended opposition does not address this argument, but their original opposition argues that Defendants' statute of frauds argument fails due to the part performance doctrine and because Defendants plead the same oral contract in their cross-complaint. (MPA ISO Opposition, pp. 12-14.) On Reply, Defendants argue that Plaintiffs' amended opposition does not address this cause of action and that Plaintiffs were to be reimbursed via monthly credits upon occupancy of the newly constructed barn, and that the project was only approaching completion when Plaintiffs vacated the property and abandoned the job, meaning they have not fully performed all of their obligations, making this claim insufficiently pled. (Amended Reply, p. 8.)

"To be entitled to damages for breach of contract, a plaintiff must plead and prove (1) a contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff." (*Walsh v. West Valley Mission Community College Dist.* (1998) 66 Cal.App.4th 1532, 1545.) Here, Plaintiffs do not need to plead full performance because by alleging that Defendants withdrew from their obligations under the oral agreement on March 29, 2022 (Complaint, ¶129), they have pled an excuse for nonperformance in that Defendants made an anticipatory repudiation when they made the March 29, 2022 representations that they would not be performing in accordance with the oral contract. (*Daum v. Superior Court of Sutter County* (1964) 228 Cal.App.2d 283, 287-288 ["Strictly speaking, a total breach of a contract may arise in two ways, which, although different, have been frequently confused with each other. One is an anticipatory breach, or as it may be termed, a breach by anticipatory repudiation, which is necessarily total, and which is of importance both with relation to an excuse for nonperformance by the promisee, the repudiation being by the promisor, and the right of the promisee to recover damages immediately for a total breach of the contract before performance by the promisor is due thereunder. By its very name an essential element of a true anticipatory breach of a contract is that the repudiation by the promisor occur before his performance is due under the contract. . . . A contract is totally breached and an anticipatory repudiation occurs when the promisor without justification and before he has committed a breach, makes a positive statement to the promisee indicating that he will not or cannot substantially perform his contractual duties."].)

With respect to Defendants' argument that this claim is barred by the statute of frauds, this argument fails because "where assertion of the statute of frauds would cause unconscionable injury, part performance allows specific enforcement of a contract that lacks the requisite writing." (*In re Marriage of Benson* (2005) 36 Cal.4th 1096, 1108.) Here, Plaintiffs' payment of over \$265,000 in reliance on the oral contract satisfies this exception to the statute of frauds. (Complaint, ¶ 25.)

The Court DENIES Defendants' motion for judgment on the pleadings as to the third cause of action for breach of contract.

Sixth Cause of Action for Violation of California's Unfair Competition Law - Business and Professions Code Section 17200 et seq.

Defendants argue that this cause of action is not adequately pled because it is not pled with the

requisite particularity, seeks damages that exceed the scope of the alleged violation, and only alleges bare recitals of legal conclusions. (MPA ISO MJOP, pp. 14-16.) Plaintiffs argue that they properly pled this claim by pleading all its requisite elements and that the claim is properly pled against Dig This Inc. because of the unlicensed contractor allegations. (Amended MPA ISO Opposition, pp. 12-13.) Defendants assert on reply that Plaintiffs base this entire claim on the allegations of Dig This Inc. not being a licensed contractor and that this claim fails because the other claims against Dig This Inc. fail. (Amended Reply, pp. 8-9.)

The Court reads paragraph 66 of the Complaint more broadly than Defendants. Paragraph 66 alleges that “Defendants Saadeh, Ward, Country Equestrians, Dig This, Inc . . . have and are continuing to engage in numerous illegal business practices that constitute unlawful and/or unfair and/or fraudulent business acts and/or practices . . . including, but not limited to, obtaining monies from their business clients through false promises and misrepresentations that Defendant Dig This, Inc was at all times a duly licensed contractor and that their contractor services would be provided in full compliance with the provisions of the California contractor licensing and contractor laws codified in Cal. Bus. & Prof. Code § 7000 et seq.” The Court finds that this paragraph alleges that Saadeh, Ward, Country Equestrians are the ones that are alleged to be “obtaining monies from their business clients through false promises,” and that the allegations against Dig This Inc. begin following that allegation, “and misrepresentations that Defendant Dig This, Inc was at all times a duly licensed contractor and that their contractor services would be provided in full compliance with the provisions of the California contractor licensing and contractor laws codified in Cal. Bus. & Prof. Code § 7000 et seq.” This is required as the Court must give Plaintiffs’ allegations a liberal construction. (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

“By proscribing ‘any unlawful’ business act or practice (*ibid.*), the UCL ‘borrows’ rules set out in other laws and makes violations of those rules independently actionable. (*Zhang v. Superior Court* (2013) 57 Cal.4th 364, 370.) Here, as the promissory fraud claim is properly alleged against Saadeh, Ward, Country Equestrians and the Section 7031(b) claim is properly alleged against Dig This Inc., the UCL claim is also properly pled.

The Court DENIES Defendants’ motion for judgment on the pleadings as to the sixth cause of action for violation of the UCL

Eighth Cause of Action for Recovery Under Business & Professions Code § 7031(b)

Defendants argue that Plaintiffs’ Business and Professions Code, section 7031, subdivision (b), claim fails because Plaintiffs do not allege when they paid Dig This, Inc. for its services. (MPA ISO MJOP, pp. 17-18.) They also argue that Dig This Inc.’s license was only suspended for 30 days during the project for not filing a statement of information with the Secretary of State. (*Ibid.*) Defendants also argue that the Complaint fails to allege the work Dig This Inc., performed as Section 7031 only applies where a license is required. (*Id.*, at p. 17.) Finally, Defendants argue that there is no basis alleged in the Complaint to include Saadeh, Ward, and Country Equestrian in this cause of action. (*Ibid.*) Plaintiffs argue that *Alatraste v. Cesar’s Exterior Designs, Inc.* (2010) 183 Cal.App.4th 656, 670, has held that even if the contractor held a valid license at some time during the project, the claimant may recover all monies paid during the construction and that Ward and Saadeh are proper because payments were made directly to them and they were managing officers of Dig This Inc. (Amended MPA ISO Opposition, pp. 13-15.) On reply, Defendants argue that Plaintiffs failed to identify the work Dig This Inc. performed and whether a contractor’s license was required. (Amended Reply, pp. 9-10.) They

also argue that there is no reason for Saadeh, Ward, and Country Equestrian to be included in this cause of action. (*Ibid.*)

Business and Professions Code, section 7031, subdivision (b), provides that “a person who utilizes the services of an unlicensed contractor may bring an action in any court of competent jurisdiction in this state to recover all compensation paid to the unlicensed contractor for performance of any act or contract.” Here, as per the plain language in the statute, Plaintiffs properly allege that they utilized the services of an unlicensed contractor and are now suing to recover all compensation paid “for performance of any act or contract.” (Complaint, ¶¶ 25, 31-32, 77-81.)

Moreover, Saadeh and Ward are proper parties due to the alter ego allegations (Complaint, ¶¶ 11-16), but the Court does not understand why Country Equestrian is included in this claim. The Complaint does not make this clear.

The Court GRANTS Defendants’ motion for judgment on the pleadings as to Plaintiffs’ eighth cause of action for Business and Professions Code section 7031(b) recovery, as to Country Equestrian only, with leave to amend.

Tenth Cause of Action on License and Contractor Bonds

The parties agree that this claim is not alleged against any of the named defendants in the Complaint: Saadeh; Ward; Country Equestrian; or Dig This Inc. (Amended Opposition, p. 15; Amended Reply, p. 10.) Therefore, the Court declines to rule on this portion of the Motion.

Ruling

The Court GRANTS Defendants’ motion for judgment on the pleadings as to the first cause of action for promissory fraud, as to Dig This, Inc. only, with leave to amend, and as to the eighth cause of action for Business and Professions Code section 7031(b) recovery, as to Country Equestrian only, with leave to amend. The Court DENIES Defendants’ motion for judgment on the pleadings as to the remaining causes of action.

Plaintiffs may file and serve an amended complaint within 30 days of notice of entry of this order. (Code of Civ. Proc. § 438 (h)(2).)

3. 9:00 AM CASE NUMBER: C24-02209
CASE NAME: PATRICK MORRISSEY VS. ALBERT SEBILIA
***HEARING ON MOTION IN RE: LEAVE TO FILE SUPPLEMENTAL COMPLAINT**
FILED BY: MORRISSEY, ALEXANDRA
TENTATIVE RULING:

Plaintiffs Patrick and Alexandra Morrissey (“Plaintiffs”) filed a Motion for Leave to File a Supplemental Complaint on January 14, 2026 (“Motion for Leave”). The Motion for Leave was set for hearing on May 18, 2025.

As part of earlier Case Management Conference (CMC) proceedings, the Court advanced and granted the Motion for Leave. The hearing date was to be vacated. See Order entered January 29, 2026.

Disposition

The Court finds and orders as follows:

1. The matter is moot and the hearing is **VACATED**.

4. 9:00 AM CASE NUMBER: C24-02209

CASE NAME: PATRICK MORRISSEY VS. ALBERT SEBILIA

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AGAINST THE 2ND AMENDED COMPLAINT OF PATRICK MORRISSEY AND ALEXANDRA MORRISSEY
FILED BY: QUALITY LOAN SERVICE CORPORATION**

TENTATIVE RULING:

Before the Court is Defendant Quality Loan Service Corporation (“Defendant” or “Quality”)’s motion for judgment on the pleadings (“MJOP”). The MJOP relates to Plaintiff Patrick Morrissey and Alexandra Morrissey (collectively, “Plaintiffs”)’s Second Amended Complaint (“SAC”) for (1) private nuisance, (2) damages for public nuisance, (3) injunctive relief for abatement of nuisance, (4) damages for trespass, (5) diversion of surface waters, (6) diversion of surface water to groundwater, (7) negligence, and (8) declaratory relief. As best the Court can determine, only the declaratory relief cause of action is alleged against Quality.

Defendant moves for judgment on the pleadings pursuant to Code of Civil Procedure section 438 on the grounds that Quality is not subject to liability due to the litigation privilege. Additionally, Defendant moves against Plaintiffs’ eighth cause of action for declaratory relief on the grounds that there is not a present and actual controversy regarding Defendant’s involvement with the Subject Property.

This is Defendant Quality’s first challenge to Plaintiffs’ claims.

For the following reasons, the MJOP is **GRANTED**, with leave to amend.

Judicial Notice

Defendant requests judicial notice of several documents from the Contra Costa County Recorder’s Office. The unopposed Request is **GRANTED**. (Evid. Code §§ 452, 453.)

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil &

Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:295.)

Brief Factual and Procedural Background

This case arises out of a landslide that occurred on and near the homes owned by Plaintiffs and Defendant Homeowners on or about January 15 through 19, 2023. (SAC at ¶ 15.) The SAC further alleges that Defendant United Wholesale Mortgage (“UWM”) and Does 101-300 “took possession of the property and/or were notified that Plaintiffs had abandoned their property.” (*Id.* at ¶ 80.) Plaintiffs allege that they are “unable to make any of the repairs sought in this action without permission to access the locked gate.” (*Id.*) The further allege that Defendants have “wrongfully instituted foreclosure proceedings without proper legal or factual basis by wrongfully claiming that Plaintiffs have abandoned their property.” (*Id.* at ¶ 81.)

The Supplemental Complaint alleges generally that Defendant United Wholesale Mortgage, Defendant Federal National Mortgage Association, and Defendant Cenlar FSB have “exercised dominion, custody, and control over said Property by, among other things, restricting Plaintiffs’ access, controlling decision-making regarding remediation and safety, and communicating with third parties in a manner consistent with ownership-level control.” (Supp. Compl. at ¶ 3.) It seeks additional declaratory relief “that UWM and Does 101-300 are legally responsible for damages caused during [their] exercise of dominion and control over the property, including without limitation damages resulting from UWM’s delay, obstruction, or refusal to permit necessary repairs.” (*Id.* at ¶ 11(F).)

Plaintiffs filed the Second Amended Complaint on August 26, 2025.

Plaintiffs named Quality as a Doe 103 on September 3, 2025. Quality answered on January 16, 2026 and filed their motion for judgment on the pleadings the same day.

Plaintiffs filed their first Supplemental Complaint on March 2, 2026.

Analysis

As a threshold issue, Plaintiffs argue that the MJOP is moot because of their First Supplemental Complaint. That is incorrect. The purpose of a supplemental complaint is to “alleg[e] facts material to the case occurring after the former complaint or answer.” (Code Civ. Proc. § 464(a).) “A complaint and supplemental complaint are considered as separate pleadings[.]” (*Stack v. Welder* (1935) 3 Cal.2d 71, 76.) “Primarily, a supplemental complaint deals with matters occurring *after* commencement of the action and it only sets up matters consistent with the original complaint. A supplemental complaint is in no sense an amended complaint.” (*ITT Gilfillan, Inc. v. City of Los Angeles* (1982) 136 Cal.App.3d 581, 586-87 [emphasis original] [citations omitted].) The Plaintiffs’ First Supplemental Complaint did not supplant their Second Amended Complaint and the MJOP is not moot on that grounds.

As a consequence, the Court reaches the merits of Defendant’s demurrer argument; first, that their status as a trustee prohibits imposition of liability. (Demurrer at § II(A).)

Pursuant to Civil Code section 2924, subdivision (d)(1), the mailing, publication, and delivery of foreclosure notices, including notices of default and sale, are privileged communications. (Civ. Code, § 2924, subd. (d)(1); see *Schep v. Capital One, N.A.* (2017) 12 Cal.App.5th 1331, 1336.) California courts have determined that this is a qualified privilege held by trustees. (*Kachlon v. Markowitz* (2008) 168 Cal.App.4th 316, 333.) In *Kachlon*, the court held that the privilege applicable to section 2924 is not the absolute litigation privilege, but rather the qualified common interest privilege. (*Id.* at 334-344 (“Having concluded that section 2924 makes the common interest privilege (§ 47, subd. (c)(1)) applicable to statutory, nonjudicial foreclosure procedures, we now determine whether the

trial court, based on that privilege, properly granted a directed verdict for Best Alliance on the Markowitzes' slander of title claim"); cf. *Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 293 ("Given that slander of title is a tort claim, it is not surprising that a slander of title claim has been held to be subject to a litigation privilege defense. [Citations.]")

When a complaint reveals a privilege, the plaintiff must plead facts establishing malice. "(A)ctual facts must be alleged, unless they are apparent from the statement itself." (*Tschirky v. Sup. Ct.* (1981) 124 Cal.App.3d 534, 538-539.) The "mailing, publication, and delivery of notices" required as part of the nonjudicial foreclosure process are privileged. (Civ. Code § 2924, subd. (d)(1).) Therefore, a plaintiff must also allege that the recording was done with malice, "motivated by hatred or ill will" or without reasonable grounds for belief in the truth of the publication..." (See *Kachlon, supra*, 168 Cal.App.4th at 336.) Plaintiffs fail to meet this pleading requirement.

Although Quality argues that it "was named as a Doe Defendant solely for actions conducted in its capacity as Trustee under the Deed of Trust" (Demurrer at 4:6-7), precisely because Quality was added as a Doe Defendant, there are no separate specific substantive allegations regarding its conduct beyond boilerplate. As it stands, the Court concludes that Plaintiffs' cause of action is not sufficiently plead against Quality because there are no individual specific substantive allegations regarding Quality's conduct that would establish malice on its part. As a consequence, the MJOP is **GRANTED**.

5. 9:00 AM CASE NUMBER: C24-02417
CASE NAME: AGUSTIN SALES SALES VS. ZEINAB HAIDAR
***HEARING ON MINOR'S COMPROMISE AS TO ALEX SALES SALES**
FILED BY: SALES SALES, NORBERTO EMILIANO
TENTATIVE RULING:

Claimants Alex Sales Sales, Hirene Sales and Frankli Estuardo Sales Sales, by and through their duly appointed guardian ad litem herein, Norberto Emiliano Sales Sales ("Petitioner") filed three separate petitions for approval of compromise of claim on or about January 6, 2026 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on May 18, 2026.

Analysis

The Minor's Compromise is unopposed.^[FN1] The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is **APPROVED**.
2. The proposed forms of order [Order Approving Compromise of Claim (MC-351)] lodged with the moving papers reflect the prior department assignment. Petitioner to submit revised forms of order with Department 34's information and the updated hearing information.

[FN1]: Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER

Civ. Pro.—Before Trial”), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor’s compromise and concluding that a judge “may decide a petition to approve or disapprove a minor’s compromise on an ex parte basis, in chambers”). In any event, no party has sought to appear to oppose the Minor’s Compromise.

6. 9:00 AM CASE NUMBER: C24-02417
CASE NAME: AGUSTIN SALES SALES VS. ZEINAB HAIDAR
***HEARING ON MINOR'S COMPROMISE AS TO HIRENE SALES**
FILED BY: SALES SALES, NORBERTO EMILIANO
TENTATIVE RULING:

See LINE 5 above.

7. 9:00 AM CASE NUMBER: C24-02417
CASE NAME: AGUSTIN SALES SALES VS. ZEINAB HAIDAR
***HEARING ON MINOR'S COMPROMISE AS TO FRANKLI ESTUARDO SALES SALES**
FILED BY: SALES SALES, NORBERTO EMILIANO
TENTATIVE RULING:

See LINE 5 above.

8. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS SET 1 ON PETER DOCTER**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

Plaintiff Michael Hoffman (“Plaintiff”) filed eleven separate discovery motions on September 29 and 30, 2025 to compel further responses to various discovery requests propounded upon the defendants. Collectively, these motions are referred to herein as the “Motions to Compel Further Responses.” The Motions to Compel Further Responses were set for hearing on various dates and ultimately consolidated for hearing on the March 23, 2026 calendar by the Court. See Order entered February 19, 2026. The Court also directed the parties to confer further and advise as to the items that remain in dispute.

The parties filed a Joint Report on March 12, 2026 that details the particular discovery requests that remain in dispute, as detailed further below.

The Court addressed a number of the requests in its prior Order entered April 1, 2026 (the “April 1st Discovery Order”). As part of that order, the Court ordered the parties to meet and confer further regarding certain Remaining Discovery Requests, as set forth further below, and to file, thereafter, Joint Separate Statement before the next hearing date set for May 18, 2026.

The partes filed the Joint Separate Statement on May 4, 2026.

Background

The discovery requests which remain at issue, as addressed in the Joint Separate Statement (collectively, the “Remaining Discovery Requests at Issue”) are the following:

1. Request for Production of Documents (Set One) propounded by Plaintiff upon defendant Peter Docter (the “**Peter Docter RPDs**”) – **Nos. 14, 19 and 20**;
2. Request for Production of Documents (Set One) propounded by Plaintiff upon defendant Mark Becker (the “**Mark Becker RPDs**”) – **Nos. 13 and 14**;
3. Request for Production of Documents (Set One) propounded by Plaintiff upon defendant Mark Becker, Inc. (the “**MBI RPDs**”) – **Nos. 13 and 14**;
4. Request for Production of Documents (Set One) propounded by Plaintiff upon defendant Comerica Bank & Trust, N.A. (the “**Comerica RPDs**”) – **NONE**; and
5. Special Interrogatories (Set One) propounded by Plaintiff upon defendant Peter Docter (the “**Peter Docter SROGs**”) – **NONE**.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statements, the Opposition papers and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery Requests at issue:

Remaining Discovery Requests

Peter Docter RPDs – Nos. 14, 19 and 20

Peter Docter RPDs, No. 14. The parties conferred on the scope of the responsive production and Plaintiff indicates to the Court that the scope of the remaining dispute is over the production of responsive documents relating to “costs and expenses of the Development” as further limited by time and type of materials, as summarized in the Joint Separate Statement. While Plaintiff may have sought to confer on a more limited scope of production as part of the meet and confer, agreement was reached. Therefore, the Court must now consider the request as framed by the operative

discovery request. As framed, the Court finds that the request is overbroad and not reasonably calculated to lead to the discovery of admissible evidence. The broad-brush recitation of relevancy of the “costs and expenses” documentation fails to adequately articulate what specific financial documentation and the information contained therein would have any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the particular claims at issue. Even if such a connection were articulated, that might well justify an appropriately framed and more limited discovery request. But, that does not sufficiently justify compelling a further response to the subject request as it was framed and propounded. A court—in connection with deciding whether to compel a further response—has no obligation to redraft a party’s discovery requests in order to limit it to a proper scope. See *Deaile v. General Telephone Co. of California* (1974) 40 Cal.App.3d 841, 851; see also *Ryan v. Superior Court of Los Angeles County* (1960) 186 Cal.App.2d 813, 817 (“...if the interrogatories are so framed as to require the disclosure of relevant as well as irrelevant matter, the trial court in the exercise of its discretion may refuse to order such interrogatories answered.”). The Court finds that the moving party has failed to set forth specific facts showing good cause justifying the discovery sought by the demand. Accordingly, the request to compel a further response to this inspection demand is **DENIED**.

Peter Docter RPDs, No. 19. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

Peter Docter RPDs, No. 20. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

Mark Becker RPDs – Nos. 13 and 14

Mark Becker RPDs, No. 13. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

Mark Becker RPDs, No. 14. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

MBI RPDs – Nos. 13 and 14;

MBI RPDs, No. 13. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

MBI RPDs, No. 14. DENIED for the same reasons discussed above in connection with connection with **Peter Docter RPDs, No. 14**.

Sanctions

The Court reserved consideration of the imposition of sanctions pending resolution of the further proceedings.

As to the discovery requests on which the Court ruled, the Court uniformly denied each of the requests to compel a further response, both in this order and the Court’s prior order. See April 1st Discovery Order. A number of the requests were denied because Plaintiff failed to engage in statutorily compliant meet and confer efforts before resorting to the motions. *Id.*

The Court finds that the moving party’s conduct constituted making a motion to compel discovery unsuccessfully and without substantial justification, pursuant to Code of Civil Procedure section 2023.010(h).

At least as to a portion of the subject discovery requests at issue, the Court further finds that the moving party’s conduct constituted failing to confer or to attempt to confer, in person, by telephone,

or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).

The Court finds that the foregoing conduct by the moving party constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions (the “Monetary Sanctions”).

While the Court finds that Monetary Sanctions are appropriate, the Court recognizes that a portion of the discovery issues raised by the Motions to Compel Further Responses were resolved by meet and confer. The Court is inclined to consider that fact in mitigation.

Disposition

The Court further finds and orders as follows:

1. The Remaining Discovery Requests are **DENIED** as set forth further above.
2. **Determination of Monetary Sanctions.** In order to assess and fix the reasonable expenses, including attorney’s fees or other costs, incurred by defendants as a result of the foregoing conduct by the moving party, the Court makes the following orders:
 - a. **Defendants’ Supplemental Declaration regarding Monetary Sanctions.** Within **thirty (30) days** of notice of entry of this order, defendants shall file and serve a declaration signed under penalty of perjury (“Supplemental Declaration regarding Monetary Sanctions”) setting forth any and all reasonable expenses, including attorney’s fees or other costs, incurred by defendants as a result of the above discovery misconduct. Such submittal shall include any supporting billing statements. **A single pleading shall be filed and set forth a single accounting of the expenses as to all of the motions.**
 - b. **Content and Length of Supplemental Declaration.** Defendants’ Supplemental Declaration regarding Monetary Sanctions shall not exceed 5 pages, excluding any evidentiary attachments such as supporting attorney billing statements or other documentation of reasonable expenses. Any redaction of billing statements regarding privilege issues should be as minimal as possible in order to facilitate the Court’s review and consideration of the scope of the legal services provided.
 - c. **Meet and Confer.** Within **fourteen (14) days** after service of the defendants’ Supplemental Declaration regarding Monetary Sanctions, the parties shall meet and confer, in good faith, to attempt to resolve the issue of the Monetary Sanctions.
 - d. **Moving Party’s Further Response.** Within **thirty (30) days** after service of defendants’ Supplemental Declaration regarding Monetary Sanctions, Plaintiff shall file and serve any further responsive declaration or other opposition papers regarding the Monetary Sanctions sought.
 - e. **No Reply.** No further reply papers shall be submitted regarding the issue of the Monetary Sanctions.
 - f. **Further Hearing.** The issue of Monetary Sanctions shall be set for further hearing on **August 3, 2026, 9:00 am, in Department 34** of the Court. The Court reserves jurisdiction regarding the determination and imposition of the Monetary Sanctions.
3. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL
INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT COMERICA BANK & TRUST, N.A.
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

10. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF
DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT COMERICA BANK & TRUST;
REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86; MEMO OF P&AS
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

11. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF
DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT PETER DOCTER; REQUEST FOR
MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86; MEMO OF P&AS
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

12. 9:00 AM CASE NUMBER: C24-03201
CASE NAME: CASSANDRA JACKSON VS. CITY OF RICHMOND
*HEARING ON MOTION IN RE: LEAVE TO FILE COMPLAINT IN INTERVENTION - ADVANCED FROM
8/10/26
FILED BY: CONTRA COSTA COUNTY SCHOOLS INSURANCE GROUP
TENTATIVE RULING:

Off calendar due to stipulation filed by parties. Contra Costa County Schools Insurance Group may file a complaint in intervention.

13. 9:00 AM CASE NUMBER: C25-00190

CASE NAME: BRIAN FLANIGAN VS. JOHN GIL

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: GIL, JOHN

TENTATIVE RULING:

Defendants' Demurrer to the Complaint is **SUSTAINED WITH LEAVE TO AMEND**. Defendants shall prepare the order and shall serve and file notice of entry of the order. Plaintiff shall have 10 days from service of notice of entry of the order to file and serve an amended complaint.

Factual and Procedural Background

This case arises out of a motor vehicle collision that occurred on November 2, 2022, on Eastbound Highway 24 near Exit 10 in Orinda, Contra Costa County. Plaintiff alleges that Defendants John Gil and John Sophinos were working in the course and scope of their employment for Bay Area Carpet Cleaning when the collision occurred, and asserts a single cause of action for negligence. (Defs.' RJN, Ex. 1 [Complaint], ¶¶ 6, 14–18.) The applicable two-year statute of limitations under Code of Civil Procedure section 335.1 therefore expired on November 2, 2024.

This is Plaintiff's second action arising out of the November 2, 2022 collision. Plaintiff filed the first action on June 11, 2024 (Case No. C24-01525, the "2024 Action"), within the limitations period. (RJN, Ex. 2.) Plaintiff's counsel did not appear at the October 16, 2024 Case Management Conference in the 2024 Action, prompting the Court to issue an Order to Show Cause set for November 20, 2024. (RJN, Ex. 3.) Plaintiff's counsel did not appear at the November 20, 2024 OSC hearing either. The Court dismissed the 2024 Action that day. The minute order reflects: "No appearances. The Court dismisses this action without prejudice for failure to prosecute." (RJN, Ex. 4.) Although Code of Civil Procedure section 473(b) permits a party to seek relief from dismissal based on attorney fault within six months, no motion for relief under that provision was filed.

Plaintiff did not file this action (Case No. C25-00190, the "2025 Action") until January 23, 2025.

Defendants now demur to the complaint in the 2025 Action. Defendants argue that the Complaint is defective on its face because Plaintiff failed to commence this action within the applicable two-year statute of limitations under Code of Civil Procedure section 335.1, which requires a cause of action for "injury to ... an individual caused by the wrongful act or neglect of another" to be brought within two years. Defendants further argue that, although certain doctrines may toll the statute of limitations in appropriate circumstances, none applies here.

Legal Standard

"A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal.App.5th 989, 996.) The Court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Id.*) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.)

Procedural Issues

Plaintiff's Overlength Opposition Brief

Plaintiff's opposition brief is 22 pages, exclusive of tables. This length is not permitted under California Rules of Court, rule 3.1113(d), and Plaintiff did not obtain leave of court before filing the overlength brief. Overlength briefs are considered late papers. (Cal. Rules of Court, rule 3.1113(g).) The Court has discretion to disregard an untimely filing. (See Cal. Rules of Court, rule 3.1300(d).)

Plaintiff filed an ex parte application on May 12, 2026 addressing the overlength brief. Plaintiff is admonished that a party is required to seek leave in advance of filing the paper. Nonetheless, in its discretion, the Court has reviewed and considered Plaintiff's oversized brief. The ex parte is GRANTED to that extent and is otherwise DENIED.

Plaintiff is admonished to comply with the page limitations set forth in California Rules of Court, rule 3.1113(d), in the future. If Plaintiff wishes to exceed these page limitations, Plaintiff must obtain leave of court in advance of filing pursuant to California Rules of Court, rule 3.1113(e).

Meet and Confer

Before filing a demurrer, the demurring party is required to meet and confer with the party who filed the pleading demurred to for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code. Civ. Proc. § 430.41(a).)

Defendants made several attempts by telephone to meet and confer with Plaintiff's counsel as required by Code of Civil Procedure section 430.41(a), but did not receive a response prior to filing the demurrer. (Joseph Kim Declaration, ¶¶ 3, 4, 7, 9, 11, 12, Exs. B, C, E, F.)

The Court will nonetheless address the merits in the interest of judicial efficiency, but reminds counsel that compliance with statutory meet and confer requirements is expected in future motion practice and subsequent failures to comply may result in a continuance of the hearing on the subject motion.

Judicial Notice

The parties' unopposed judicial notice requests are granted and notice will only be taken to the extent permitted. (Evid. Code, § 452(d); *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.

Discussion

Equitable Tolling

"Equitable tolling is a judicially created doctrine that, where applicable, will 'suspend or extend a statute of limitations as necessary to ensure fundamental practicality and fairness.'" (*Long v. Forty Niners Football Co., LLC* (2019) 33 Cal.App.5th 550, 554-55.) "Broadly speaking, the doctrine applies '[w]hen an injured person has several legal remedies and, reasonably and in good faith, pursues one.'" (*Id.* at p. 555.) "Where a claim is time-barred on its face, the plaintiff must specifically plead

facts that would support equitable tolling." (*Long v. Forty Niners Football Co., LLC* (2019) 33 Cal.App.5th 550, 555.)

"The doctrine of equitable tolling, however, only applies where the plaintiff has alternate remedies and has acted in good faith." (*Thomas v. Gilliland* (2002) 95 Cal.App.4th 427, 434.) For example, the doctrine applies where a plaintiff exercised his right to seek an administrative remedy and thereafter chose to file suit after the limitations period after the administrative agency deferred its investigation. (*Downs v. Department of Water & Power* (1997) 58 Cal.App.4th 1093, 1101.) As another example, the doctrine applies where a plaintiff files an action after pursuing a workers' compensation claim. (*Elkins v. Derby* (1974) 12 Cal.3d 410.) The doctrine does not apply where a plaintiff does not have alternative remedies and files a new action after a previous action is dismissed. (*Thomas, supra*, 95 Cal.App.4th at p. 434.)

Here, Plaintiff argues the statute of limitations is tolled under the doctrine of equitable tolling because he previously filed an action concerning the same November 2, 2022 motor vehicle collision on June 11, 2024 and within the two-year limitations period (the 2024 Action). That action was dismissed by the Court on November 20, 2024, after Plaintiff's counsel failed to appear at the October 16, 2024 Case Management Conference and the November 20, 2024 Order to Show Cause hearing. Plaintiff emphasizes that the November 20, 2024 dismissal occurred eighteen days after the two-year limitations period expired on November 2, 2024, with the result that any refiling after the dismissal would necessarily fall outside the limitations period, a sequence Plaintiff characterizes as the kind of "technical and unjust forfeiture" that equitable tolling is designed to prevent under *Addison v. State of California* (1978) 21 Cal.3d 313, 319, and *Bollinger v. National Fire Ins. Co.* (1944) 25 Cal.2d 399, 404.)

Plaintiff further contends Defendants had continuous notice of the claim through their insurer and counsel beginning in May 2024, that Defendants have identified no concrete prejudice from the delay, and that Plaintiff acted diligently throughout, including by attempting personal service, retaining a private investigator, and obtaining two ex parte orders for service by publication.

The cause of action for negligence is based on an auto accident that occurred on November 2, 2022. The cause of action is time barred on its face because this action was filed more than two years after the accident. Plaintiff was required to specifically plead facts that would support equitable tolling, which he did not. (*Long, supra*, 33 Cal.App.5th at p. 555.)

Beyond the pleading defect, the Court is not currently persuaded that this is one of the limited situations in which the doctrine of equitable tolling applies. The doctrine traditionally applies where a plaintiff has alternative legal remedies and opts to pursue one in good faith. Here, Plaintiff pursued his action in court and filed a second suit after the first was dismissed, a circumstance to which the doctrine has been held not to apply. (*Thomas, supra*, 95 Cal.App.4th at p. 434.)

Equitable Estoppel

Plaintiff further appears to argue that defendants are equitably estopped to assert the statute of limitations in this case. (See Opp., pp. 13: 17-24 and 26:5-7.)

Equitable estoppel applies after the limitation has run and addresses circumstances where a party will be estopped from asserting a statute of limitations defense because their conduct has induced the

plaintiff from initiating a lawsuit during the applicable statute of limitations period. (*Lantz v. Centex Homes* (2003) 31 Cal.4th 363, 383.) For estoppel to apply, "(1) The party to be estopped must know the facts; (2) he must intend that his conduct shall be acted upon, or must so act that the party asserting the estoppel had the right to believe that it was so intended; (3) the party asserting the estoppel must be ignorant of the true state of facts; and (4) he must rely upon the conduct to his injury." (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

Plaintiff argues that Defendants are equitably estopped to assert the statute of limitations based on a June 11, 2024 email from defense counsel Christopher Patton stating, "we will accept service." (Defs.' RJN, Ex. 5 [DEF0010].) Plaintiff contends Defendants' subsequent reversal of that representation on November 20, 2024 induced delay and now precludes Defendants from asserting the limitations defense.

Even if the June 11, 2024 email were the proper subject of judicial notice, the Court is not persuaded that this correspondence supports an estoppel theory adequate to overcome the limitations bar. The dismissal of the 2024 Action was based on Plaintiff's counsel's nonappearance at two court hearings rather than on any service-related issue, and Plaintiff filed the 2024 Action within the limitations period on the same day as the Patton email. The relationship between defense counsel's service representations in June 2024 and the untimely filing of the 2025 Action in January 2025 is therefore not self-evident. In particular, the element of detrimental reliance would appear to require Plaintiff to plead facts showing that defense counsel's June 11, 2024 representations actually caused Plaintiff to take or refrain from some action that, in turn, caused the 2025 Action to be filed outside the limitations period. The Court does not resolve these questions on demurrer but identifies them as matters Plaintiff will need to address if equitable estoppel is to be pleaded in an amended complaint.

Leave to Amend

On the Court's first occasion to consider Defendants' demurrer, the Court is loath to sustain it without leave to amend, given the liberality with which leave to amend is permitted. (See, e.g., *Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641; *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 ["Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given"].)

Here, although Plaintiff has not explained how the Complaint may be amended to cure the identified deficiencies, and notwithstanding the reservations expressed above, the Court will grant leave to amend for Plaintiff to attempt to plead a timely cause of action. Any amended complaint should plead facts supporting each element of the doctrine or doctrines on which Plaintiff intends to rely.

Conclusion

Defendants' Demurrer to the Complaint is **SUSTAINED WITH LEAVE TO AMEND**. Defendants shall prepare the order and shall serve and file notice of entry of the order. Plaintiff shall have 10 days from service of notice of entry of the order to file and serve an amended complaint.

14. 9:00 AM CASE NUMBER: C25-02784
CASE NAME: PETITION OF: GRANGE INSURANCE ASSOCIATION
HEARING IN RE: PETITION TO PERPETUATE TESTIMONY AND PRESERVE EVIDENCE
FILED BY:
TENTATIVE RULING:

Matter **WITHDRAWN** by moving party's Notice of Withdrawal of Verified Petition filed May 8, 2026. The hearing is **VACATED**.

15. 9:00 AM CASE NUMBER: C25-03125
CASE NAME: JAMES GUIDRY VS. FELICIA PHO
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT**
FILED BY: PHO, FELICIA
TENTATIVE RULING:

This matter is **CONTINUED**, *sua sponte* by the Court, to **July 20, 2026, 9:00 am** in **Department 34**.

16. 9:00 AM CASE NUMBER: C26-00553
CASE NAME: KENNETH COLE VS. HYUNDAI MOTOR AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: HYUNDAI MOTOR AMERICA
TENTATIVE RULING:

This matter is **CONTINUED**, pursuant to the Stipulation of the parties, to June 29, 2026.

17. 9:00 AM CASE NUMBER: MSC17-01220
CASE NAME: STATE FARM VS MILLER
***HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENFORCE SETTLEMENT**
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY
TENTATIVE RULING:

Plaintiff State Farm Mutual Automobile Insurance Company ("Plaintiff") filed a Motion to Vacate Dismissal, Enforce Settlement and Enter Judgment on January 7, 2026 ("Motion to Enforce Settlement"). The Motion to Enforce Settlement was set for hearing on May 18, 2025. The motion is unopposed.

Background

The parties entered into that certain settlement agreement on or about May 3, 2018 (the "Settlement Agreement"), the terms of which included payment by the defendant Tanika Channel Miller ("Defendant") in the amount of \$79,776.50, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Brian P. Tapper filed January 7, 2026 as part of the Motion to Enforce Settlement ("Supporting Declaration"), ¶2 and **Exhibit A** thereto (Settlement Agreement and Stipulation for Entry of Judgment).

Analysis

The Settlement Agreement includes a provision that it is enforceable pursuant to Code of Civil Procedure section 664.6 and jurisdiction is reserved to the Court for that purpose. Settlement Agreement, ¶13.3, Supporting Declaration, **Exhibit A**.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶¶4-6.

The Settlement Agreement requires notice and an opportunity to cure. See Settlement Agreement, ¶1, Supporting Declaration, **Exhibit A** (Judgment after default may only be entered “after the defaulting Defendant is sent a TEN (10) DAYS notice of default”).

The Supporting Declaration fails to indicate service of a ten-day notice of default, as required. See Supporting Declaration, ¶¶1-6. Nothing in the Settlement Agreement indicates that service of the motion is tantamount to the giving of such notice. For this reason alone, the Court denies the motion.

However, even if a ten-day notice of default were not required, the Court further observes that it does not appear that the motion papers, as served, had the hearing information specified on the caption at the time of service. See Proof of Service dated January 6, 2026. Though the papers were served January 6, 2026, it appears that was before the clerk added the hearing information to the caption of the papers when the motion was filed on January 7, 2026.

Typically, a moving party files an amended notice of motion reflecting the assigned hearing date in those circumstances where the clerk processes the motion papers for filing and adds the hearing information after the initial papers were served, including the notice of motion (often containing a blank space for hearing date and location information to be added, as it appears was the case here).

Disposition

The Court finds and orders as follows:

1. The Motion to Enforce Settlement is **DENIED**, without prejudice.
2. The Court shall issue the order after hearing.

18. 9:00 AM CASE NUMBER: N25-1244
CASE NAME: MALINA CURIALE VS. RUBY LIU
HEARING IN RE: MOTION TO SET ASIDE VOID JUDGMENT
FILED BY:

TENTATIVE RULING:

The Motion to Set Aside Void Judgment is **CONTINUED** by the Court to June 22, 2026 at 9:00 a.m.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C22-00879
CASE NAME: NANCY STIPANICH VS. KIM FALAHATI
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES**
FILED BY: STIPANICH, NANCY
TENTATIVE RULING:

Matter **WITHDRAWN** by moving party's Notice of Withdrawal of Motion to Compel. The hearing is **VACATED**.

20. 9:01 AM CASE NUMBER: C24-01374
CASE NAME: ALI ERAMI VS. INGE PRASETIJO
***HEARING ON MOTION FOR DISCOVERY COMPEL JIN KIM, M.D.'S COMPLIANCE WITH DEPOSITION**
SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS
FILED BY: PRASETIJO, INGE CHRISTINE
TENTATIVE RULING:

Defendant Inge Christine Prasetijo ("Defendant") filed a Motion to Compel Jin Kim, M.D.'s Compliance with Deposition Subpoena for Production of Business Records on November 25, 2025 (the "Motion to Compel"). By the Motion to Compel, Defendant seeks production of medical records relating to treatment records of plaintiff Ali Erami ("Plaintiff") pursuant to subpoena. The Motion to Compel was set for hearing on May 18, 2026.

Background

Defendant issued a third party records subpoena (the "Subpoena") to third party Jin Kim, M.D. ("Dr. Kim") seeking Plaintiff's medical records. See Declaration of Jennifer Sommer filed November 25, 2025 ("Supporting Declaration"), ¶4 and **Exhibit C** thereto. Specifically, Defendant sought the following records:

Scope of records limited to: 01/01/2016 to present only

Please obtain films/imaging in DICOM format.

All documents and records stored in any format or method including, but not limited to, all medical records, intake forms, patient completed forms and/or documents, correspondence, all office records, emergency room records or reports, inpatient and outpatient charts and records, lien files, SOAP notes, pathology records and reports, lab reports, pharmacy and prescription records, physical therapy records, sign-in sheets, all descriptions of exercises prescribed, documentation which indicate date and time of patient's appointments, insurance documents, all radiology reports and readings, and any other documents maintained pertaining to the care, treatment and examination of the patient; and

COPIES of all original x-rays films, CT scans, MRIs and any other scans or images taken and/or maintained, including a comprehensive list of all dates and body parts of all films, CT scans, MRIs and all other images or scans provided. All images and films must be provided on CD if available.

See Subpoena, Attachment 3, Supporting Declaration, **Exhibit C**.

Dr. Kim refused to comply with the Subpoena despite meet and confer efforts by counsel issuing the Subpoena. Supporting Declaration, ¶17.

The Proof of Service filed December 9, 2026 reflect service of the Motion to Compel on Dr. Kim, as well as Plaintiff's counsel.

Plaintiff filed an Opposition and related papers on May 5, 2026. No papers have been filed by Dr. Kim.

A Reply was filed May 8, 2026 by Defendant.

Analysis

When a deponent fails to answer any question or to produce any document under the deponent's control that is specified in the deposition subpoena, the party seeking discovery may move the court for an order compelling that production. Code Civ. Proc. § 2025.480.

Plaintiff describes certain meet and confer efforts made by Plaintiff and the lack of response by Defendant's counsel. See Declaration of Tom Shin filed May 5, 2026 ("Opposition Declaration"), ¶12 *et seq.*

However, the fault plainly lies on both sides. As noted in the Reply, before the motion was file Plaintiff's counsel failed to promptly engage with a request for authorization for the production of the records.

That is unfortunate, as greater responsiveness and cooperation on both sides may have resolved this matter much sooner.

As recited in the Reply, however, Dr. Kim has now complied, at this point, with the Subpoena. See Further Declaration of Jennifer Sommer filed May 8, 2026, ¶14.

Even if not rendered largely moot by the production, the Court would not have been inclined to grant this motion because the information put before the court failed to establish good cause for production of records to **the extent specified** in the subject Subpoena.

The subject claims arise out of a traffic accident alleged to have occurred on September 21, 2022. See Complaint, Supporting Declaration, **Exhibit A**. Plaintiff is alleged to have "sustained multiple injuries." *Id.* Discovery responses reflect Dr. Kim is Plaintiff's "primary care physician." See *id.* at **Exhibit B**. Plaintiff also asserts that "[d]uring his deposition, Plaintiff testified Dr. Kim told him his heart tissue was mostly dead (relevant to plaintiff's loss of earnings claim as self-employed contractor)." See *id.* at ¶13.

No further information is given in the Supporting Declaration regarding the nature or extent of the subject injuries or the relationship of the subpoenaed records to such injuries or other matters at issue. See Supporting Declaration, ¶¶1-10.

The Court notes that the Subpoena sought the broadest possible scope of medical records relating to Plaintiff going back to January 1, 2016, a date more than six years before the alleged accident. Among other things, no distinction is made in the request between records relating to treatment for areas of the body reasonably implicated by the subject accident/injuries versus other matters such as mental health treatment (and no showing is made as to why such records would be properly discoverable).

While some more narrowly tailored scope of records may well have been discoverable, the Court

would not have ordered a response to the Subpoena as presently framed. Nonetheless, the matter is moot, as noted above.

As relates to sanctions however, in light of the foregoing, the Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) (“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”).

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is **DENIED** as moot.
2. Sanctions are **DENIED**.
3. The Court shall issue the order after hearing.

21. 9:01 AM CASE NUMBER: C25-01233
CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR**
ADMISSIONS BY DEFENDANT TOYOTA MOTOR SALES, U.S.A., INC.
FILED BY: MASSOUD, SAYED
TENTATIVE RULING:

Matter **WITHDRAWN** by moving party’s Notice of Withdrawal filed May 5, 2026. The hearing is **VACATED**. The other pending discovery motions were withdrawn as well.

Courtroom Clerk’s Session

22. 1:30 PM CASE NUMBER: N25-0829
CASE NAME: DUONG ESTUARY COVE, LLC VS. CONTRA COSTA COUNTY
HEARING IN RE: PETITION FOR WRIT OF MANDATE
FILED BY:
TENTATIVE RULING:

CONTINUED by the Court to June 29, 2026, at 1:30 p.m.